

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gregory Joss	Team: Team # 1	CCRB Case #: 201207978	☒ Force ☐ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Tuesday, 06/19/2012 11:00 PM	Location of Incident: § 87(2)(b)	Precinct: 44	18 Mo. SOL 12/19/2013	EO SOL 12/19/2013	
Date/Time CV Reported Wed, 06/20/2012 12:06 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 06/20/2012 12:06 AM		

[illegible]

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gerson Cabrera	07520	948727	PBBX
2. LT Johnny Orellana	00000	920679	044 PCT
3. POM Francis Flynn	11320	950424	PBBX
4. POM Robert Meyer	17234	898076	044 PCT
5. POM Christophe Egan	14190	935336	044 PCT
6. POM Michael Greaney	20646	947762	044 PCT
7. POM Eric Miller	06888	944812	044 PCT
8. Officers			044 PCT
9. An officer			044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Young	31816	947624	044 PCT
2. POM Kwame Pascal	03342	947325	044 PCT
3. POM Roberto Oviedo	19919	933134	044 PCT
4. POM Michael Rivera	26688	948413	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
5. POM Ciaran Tracey	04767	931505	044 PCT
6. POM Patrick Callahan	17006	893889	044 PCT
7. POM Alesandro Florentino	25001	940825	042 PCT
8. POM Elvyn Hernandez	22205	931726	042 PCT
9. CPT Thomas Harnisch	00000	899328	PBBX
10. SGT Junio Acosta	00293	921104	PBBX
11. POF Jessica Echevarria	09838	950367	PBBX

Officer(s)	Allegation	Investigator Recommendation
A.POM Gerson Cabrera	Force: Officer Gerson Cabrera used physical force against § 87(2)(b)	
B.POM Francis Flynn	Force: Officer Francis Flynn used physical force against § 87(2)(b)	
C.POM Robert Meyer	Force: Officer Robert Meyer used physical force against § 87(2)(b)	
D.POM Christophe Egan	Force: Officer Christopher Egan used physical force against § 87(2)(b)	
E.POM Michael Greaney	Force: Officer Michael Greaney used physical force against § 87(2)(b)	
F. Officers	Force: Officers struck § 87(2)(b) and § 87(2)(b) with their asps.	
G.POM Robert Meyer	Force: Officer Robert Meyer used pepper spray against § 87(2)(b) and § 87(2)(b)	
H. An officer	Force: An officer used pepper spray against § 87(2)(b)	
I.LT Johnny Orellana	Force: Lieutenant Johnny Orellana used physical force against § 87(2)(b)	
J. An officer	Force: An officer used physical force against § 87(2)(b)	
K. An officer	Force: An officer used pepper spray against § 87(2)(b) and § 87(2)(b)	
L. Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	
M.POM Michael Greaney	Force: Officer Michael Greaney used physical force against § 87(2)(b)	
N.POM Michael Greaney	Force: Officer Michael Greaney used physical force against § 87(2)(b)	
O.LT Johnny Orellana	Force: Lieutenant Johnny Orellana used pepper spray against § 87(2)(b)	
P. Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	
	§ 87(2)(g), § 87(4-b)	
R.POM Gerson Cabrera	Force: Officer Gerson Cabrera used pepper spray against § 87(2)(b)	

Case Summary

On June 20, 2012, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board via the call processing system (Encl. 6A-6G). On June 22, 2012, § 87(2)(b) filed this complaint with the CCRB via the on-line website (Encl. 5A-5D) and on July 12, 2012, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On June 19, 2012 at approximately 11:00 p.m. in the vicinity of § 87(2)(b) in the Bronx, § 87(2)(b) and § 87(2)(b) were arrested by PO Gerson Cabrera of Patrol Borough Bronx for § 87(2)(b).

§ 87(2)(b) The following allegations resulted:

Allegation A: Force – Officer Gerson Cabrera used pepper spray against § 87(2)(b)
§ 87(2)(g)

Allegation B: Force – Officer Gerson Cabrera used physical force against § 87(2)(b)

Allegation C: Force – Officer Francis Flynn used physical force against § 87(2)(b)

Allegation D: Force – Officer Robert Meyer used physical force against § 87(2)(b)

Allegation E: Force – Officer Christopher Egan used physical force against § 87(2)(b)

Allegation F: Force – Officer Michael Greaney used physical force against § 87(2)(b)
§ 87(2)(g)

Allegation G: Force – Officers struck § 87(2)(b) **and** § 87(2)(b) **with their asps.**

Allegation H: Force – Officer Robert Meyer used pepper spray against § 87(2)(b)
§ 87(2)(g) **and** § 87(2)(b)

Allegation I: Force – An officer used pepper spray against § 87(2)(b)
§ 87(2)(g)

Allegation J: Force – Lieutenant Johnny Orellana used physical force against § 87(2)(b)

Allegation K: Force – An officer used physical force against § 87(2)(b)

Allegation L: Force – An officer used pepper spray against § 87(2)(b)
and § 87(2)(b)

§ 87(2)(g)

Allegation M: Force – Officers used physical force against § 87(2)(b) **and** § 87(2)(b)
§ 87(2)(g)

Allegation N: Force – Officer Michael Greaney used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation O: Force – Officer Michael Greaney used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation P: Force – Lieutenant Johnny Orellana used pepper spray against § 87(2)(b)

§ 87(2)(g)

Allegation Q: Force – Officers spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. He is a black male with brown hair and brown eyes. He is 6'1" tall and weighs 165 pounds. § 87(2)(b)

CCRB Statement

On July 19, 2012, § 87(2)(b) was interviewed at the CCRB (Encl. 10A-10H). § 87(2)(g)

On June 19, 2012 at approximately 11:00 p.m., § 87(2)(b) was sitting on the stoop in front of § 87(2)(b) in the Bronx with his friends, § 87(2)(b) and § 87(2)(b). § 87(2)(b) observed a fight approximately 100 feet up the block in front of § 87(2)(b). The fight was a physical fist fight between § 87(2)(b) and § 87(2)(b) – § 87(2)(b) only knew their street names and considered them associates, but not friends. There were approximately seven to eight people around § 87(2)(b) and Ant encouraging them to fight. One of the girls, identified only by nickname § 87(2)(b) yelled out something about § 87(2)(b) having a box cutter. § 87(2)(b) saw that two uniformed officers, identified by the CCRB through investigation as PO Gerson Cabrera and PO Francis Flynn of Patrol Borough Bronx, arrived at § 87(2)(b) and § 87(2)(b) approximately five minutes after the fight started. § 87(2)(b) does not believe that anyone called the police, the officers were simply on foot patrol.

PO Cabrera was described as a Hispanic male, approximately 5'8" tall, medium build, short brown hair cut, with freckles on his face, and in his 30s. PO Flynn was described as a white male, approximately 5'7" tall, thin build, wearing prescription glasses, "geeky" looking, and 28-29 years old.

When § 87(2)(b) and § 87(2)(b) saw PO Cabrera and PO Flynn, they stopped fighting and fled the scene towards § 87(2)(b) and § 87(2)(b). The officers did not give any directives to § 87(2)(b) and Ant, nor did they pursue them.

The officers then walked toward § 87(2)(b) and approached § 87(2)(b) and § 87(2)(b). PO Cabrera told them that they had to go inside because the officers were "enforcing martial law." § 87(2)(b) objected and told the officers that he lived at the location and could prove it. PO Cabrera told § 87(2)(b) to go inside or he would be arrested. § 87(2)(b) said, "I'm not going inside. I didn't do anything wrong." PO Cabrera pulled out his handcuffs and again told § 87(2)(b) to go inside. Again, § 87(2)(b) refused.

PO Cabrera rushed toward § 87(2)(b) and § 87(2)(b) backed away and said, "Don't touch me." PO Cabrera brandished his extendable baton and made a motion as though he were going to swing it at § 87(2)(b). § 87(2)(b) put his two fists and forearms up in front of his face to block the potential strike. PO Flynn then drew his pepper spray and sprayed § 87(2)(b) in the face. § 87(2)(b) then took off his shirt to rub his eyes. Other than telling § 87(2)(b) to go inside, the officers had not given § 87(2)(b) any additional commands.

At this point, § 87(2)(b) was standing approximately five feet from the officers, recording the incident with his cell phone. § 87(2)(b) was still present, as was § 87(2)(b)'s friend, § 87(2)(b) who lives at § 87(2)(b). § 87(2)(b) and § 87(2)(b) were not making any comments towards the officers or engaging with them physically, but they were trying to get § 87(2)(b) away from the scene because there was no sense arguing with the officers.

§ 87(2)(b) was on the steps of § 87(2)(b) at this point, tussling with PO Cabrera and PO Flynn. PO Cabrera went to hit § 87(2)(b) with his baton and almost fell over the railing of the steps. § 87(2)(b) grabbed PO Cabrera to prevent him from falling.

A uniformed officer, identified by the CCRB through investigation as PO Robert Meyer of the 44th Precinct, along with three other uniformed officers, responded to the location in marked patrol cars. PO Meyer, was described as a white male, approximately 5'5" tall, chubby build, shaggy hair with a mustache, and in his 40's. The other three officers were described as white males. PO Meyer immediately ran up the steps and struck § 87(2)(b) twice in his right leg with his extendable baton.

PO Cabrera, PO Flynn, PO Meyer, and the other officers continued to try to restrain § 87(2)(b) but he stood firm, covered his face, and kept saying, "What are you arresting me for? I didn't do anything." § 87(2)(b)'s daughter, § 87(2)(b) and wife, § 87(2)(b) tried to get between the officers and § 87(2)(b) and were subsequently pepper-sprayed by PO Meyer. § 87(2)(b) also observed PO Meyer pepper-spray § 87(2)(b) § 87(2)(b) mother, § 87(2)(b) and § 87(2)(b) § 87(2)(b) was also pepper-sprayed by an officer he could not describe.

An officer in plainclothes, identified by the CCRB through investigation as PO Michael Greaney of the 44th Precinct, ran up the steps and grabbed § 87(2)(b) by the legs, swept him off his feet, and pulled him down the three steps of the stoop. PO Greaney was described as a white male, approximately 5'9" to 5'10" tall, muscular build, with short cut reddish/brown hair.

Once § 87(2)(b) was dragged down the stairs, PO Greaney was restraining § 87(2)(b)'s legs while the other officers were on top of § 87(2)(b). PO Meyer punched § 87(2)(b) two to three times with a closed fist in § 87(2)(b)'s chest and head area. § 87(2)(b) was standing 6-7 feet from § 87(2)(b) and the officers at this point. At this point, § 87(2)(b)

estimated that approximately 20 police vehicles had arrived at the location, from both the 42nd and 44th Precincts, and approximately 50 officers, all in uniform except PO Greaney and his partner, identified by the CCRB through investigation as PO Eric Miller of the 44th Precinct.

PO Greaney saw that § 87(2)(b) was recording the incident, and without saying anything, ran towards § 87(2)(b) struck him in the right cheek area with his right forearm and then struck him in the upper chest with his left forearm. This action caused § 87(2)(b) to fall backwards over a car and land on his lower back. § 87(2)(b) stated that he laid on the ground in pain for approximately five minutes before getting back up.

Once he was back on his feet, § 87(2)(b) saw his friend § 87(2)(b) on the steps of his house at § 87(2)(b). Approximately three to four uniformed officers (different officers from the ones previously described) dragged § 87(2)(b) off his stoop and proceeded to beat him. § 87(2)(b) stated that § 87(2)(b) was on the ground, laying limp, and was struck approximately 10 times with fists by three different officers and five times with a baton by a single officer. This “beating” lasted approximately two minutes before § 87(2)(b) was handcuffed and placed in a prisoner van. § 87(2)(b) observed this from a distance of approximately two car lengths. § 87(2)(b) was not able to describe the officers.

§ 87(2)(b) also saw § 87(2)(b) get beaten by uniformed officers (different officers than the officers that beat § 87(2)(b) and different than the ones he previously described) after he tried to prevent his mother from getting pepper-sprayed. § 87(2)(b) was also struck with a baton. § 87(2)(b) also witnessed § 87(2)(b) get beaten and arrested by officers.

An officer in a white shirt, identified by the CCRB through investigation as Lt. Johnny Orellana of the 44th Precinct, threatened to arrest § 87(2)(b) who was verbally advocating for everyone’s rights.

§ 87(2)(b) did not receive any medical attention as a result of this incident. Once the incident concluded, a patrol car drove by the block and an unidentified officer recorded everyone who was still standing outside on § 87(2)(b). The officer posted the video on YouTube under the title, “§ 87(2)(b) § 87(2)(g)

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. He is a black male with black hair and brown eyes. He is 5’10” tall and weighs 235 pounds. § 87(2)(b)

Arrest Photo

There are no apparent injuries in § 87(2)(b) arrest photo (Encl. 8A).

CCRB Statement

On June 29, 2012, § 87(2)(b) provided the CCRB with a telephone statement (Encl. 50C). On July 18, 2012, § 87(2)(b) was interviewed at the CCRB (Encl. 7A-7I). On § 87(2)(b) § 87(2)(b) filed a Notice of Claim against the City of New York (Encl. 49A-49F). On § 87(2)(a) Gen.Mun. §50- § 87(2)(b) provided 50-h Hearing testimony for this incident (Encl. 9A-9AZ). § 87(2)(g)

On June 19, 2012 at approximately 11:00 p.m., § 87(2)(b) was inside his home at § 87(2)(b) in the Bronx, watching television with his sister, § 87(2)(b) and mother, § 87(2)(b) and § 87(2)(b) heard a commotion outside and went to the window to see what was happening. When § 87(2)(b) went to the window, he saw his friend and neighbor, § 87(2)(b) who he has known for eight to nine years outside of § 87(2)(b) with a uniformed officer in his face. § 87(2)(b) residence is on the second floor, but was still only

approximately ten feet from § 87(2)(b) and the officer, and he had a clear view and could hear everything. § 87(2)(b) described the street as very well lit.

The officer, identified by the CCRB through investigation as PO Gerson Cabrera, was described as a Hispanic male, approximately 5'9" tall, average build, with blond hair, and 26 to 27 years old. PO Cabrera was yelling to § 87(2)(b) "Get out of my face, get out of my face." § 87(2)(b) was backing away with his hands in the air and was saying, "I didn't do anything wrong." § 87(2)(b) did not see how the interaction between § 87(2)(b) and PO Cabrera was initiated. PO Cabrera's partner, identified by the CCRB through investigation as PO Francis Flynn, was described as a Hispanic male, approximately 5'5" to 5'6" tall, chubby build, with brown hair, and in his thirties. PO Flynn was dressed in uniform. At this point, there were no other officers present.

§ 87(2)(b) her nephew § 87(2)(b) § 87(2)(b) and several other unidentified people from the neighborhood were gathering and observing the interaction between § 87(2)(b) and PO Cabrera. § 87(2)(b) and § 87(2)(b) were telling the officers to leave § 87(2)(b) alone. § 87(2)(b) and § 87(2)(b) were 15 to 20 feet from the officers when they said this.

When § 87(2)(b) saw PO Cabrera getting in § 87(2)(b)'s face, he and § 87(2)(b) went downstairs and outside of his building. At this point, PO Cabrera tried to grab § 87(2)(b)'s arms, but § 87(2)(b) refused to give the officer his arms and kept them in the air. § 87(2)(b) kept saying that he did not do anything wrong. PO Cabrera did not give § 87(2)(b) any commands or directives. PO Cabrera only twice said, "I'm taking you in." When § 87(2)(b) refused to give PO Cabrera his arms, PO Cabrera stepped back and pepper-sprayed § 87(2)(b) in the face multiple times from a distance of approximately five feet.

§ 87(2)(b) and § 87(2)(b) were standing approximately ten feet from PO Cabrera as they observed this interaction. They were not saying anything and had not engaged with any officers at this point.

Residents from the neighborhood started coming outside and saying "Hey you can't do that, he did not do anything wrong." The crowd was standing ten feet or more from the officers and was not trying to physically interfere or stop the officers. § 87(2)(b) who had gone outside before § 87(2)(b) and § 87(2)(b) was among this crowd. PO Cabrera and PO Flynn were not giving any commands to the crowd.

After approximately five minutes, a marked NYPD van, five marked police sedans, and an unmarked car occupied by two plainclothes officers, identified by the CCRB through investigation as PO Michael Greaney and PO Eric Miller, arrived at the location.

Approximately four to seven officers tried to get § 87(2)(b) to the ground. § 87(2)(b) was not fighting with the officers, but he was also not allowing them to take him to the ground or letting them grab his hands. § 87(2)(b)'s daughter was at the location and was telling the officers to stop. She was subsequently pepper-sprayed in the face by a uniformed officer, identified by the CCRB through investigation as PO Robert Meyer of the 44th Precinct. PO Meyer was described as a white male, approximately 5'3" tall, stocky build, with a mustache, and over 40 years old. PO Meyer also pepper-sprayed § 87(2)(b) one to two times.

Another unidentified uniformed officer also pepper-sprayed § 87(2)(b) three times. The officer was described as a Hispanic male, approximately 6'0" tall, slim build, with black hair, and in his 30s. PO Meyer and the unidentified officer were right in § 87(2)(b)'s face when they discharged their pepper-spray. § 87(2)(b) estimated that § 87(2)(b) was pepper-sprayed a total of 15 times.

At this point, § 87(2)(b) was still on his feet, against the door on his stoop, with his arms in the air. § 87(2)(b) was saying, "Why are you doing this?" A plainclothes officer was also assisting in restraining § 87(2)(b). The plainclothes officer, identified as PO Greaney, was described as a white male, approximately 6'2" to 6'3" tall, stocky build, and 40 to 45 years old.

PO Greaney put a hand on each of § 87(2)(b) shoulders and shoved him down the block and said, “Move. Get down the block.” § 87(2)(b) stated the shove was not particularly violent, but he did not appreciate the unwanted physical contact. § 87(2)(b) replied, “Don’t touch me,” but complied with PO Greaney’s directive and moved away.

When § 87(2)(b) turned around, he saw § 87(2)(b) on the ground with multiple officers on top of him. § 87(2)(b) saw § 87(2)(b) get punched twice, but could not identify which officer or officers threw the punches.

§ 87(2)(b) estimated that the crowd of civilians was about 15 large at this point. Another officer, dressed in a white shirt, identified by the CCRB through investigation as Lt. Johnny Orellana of the 44th Precinct, was assisting PO Greaney in moving the crowd back toward § 87(2)(b). Lt. Orellana was described as an Indian or Arabic male, approximately 6’0” tall, average build, and in his 40s.

Lt. Orellana ordered § 87(2)(b) to back away from the scene. § 87(2)(b) explained to Lt. Orellana that he was trying to see who the officers had on the ground. Lt. Orellana asked, “Oh you want to fight?” Lt. Orellana then shoved § 87(2)(b) against a gate and tried to take § 87(2)(b) cell phone from his hand which he was using to record the incident. § 87(2)(b) had his back against the gate with his hands in the air and was telling Lt. Orellana that he was not going to get his phone and that he had not done anything wrong. § 87(2)(b) approached and was trying to grab § 87(2)(b) phone to prevent Lt. Orellana from getting it.

The unidentified Hispanic officer described above then approached § 87(2)(b) and tried to get § 87(2)(b) other hand. § 87(2)(b) stated, “I didn’t do anything wrong, what are you trying to arrest me for?” Lt. Orellana was directing § 87(2)(b) to give them his arms, but § 87(2)(b) refused to put his arms down. § 87(2)(b) “tensed” his arms up, but did not make any other movements with his body. Lt. Orellana then, with an open palm, struck § 87(2)(b) three to four times in his right rib cage area. An unidentified officer punched § 87(2)(b) a single time with a closed fist in his left ribs. § 87(2)(a) Gen.Mun. §50-H(3)

The unidentified officer then, without saying anything, pepper-sprayed § 87(2)(b) directly in his left eye with a single blast.

§ 87(2)(b) and § 87(2)(b) were trying to pull § 87(2)(b) away from the officers and exclaiming that he did not do anything wrong. One of the officers then pepper-sprayed § 87(2)(b) and § 87(2)(b) in the face. § 87(2)(b) could not identify the officer that pepper-sprayed his mother and sister.

§ 87(2)(b) who lives with § 87(2)(b) was standing behind the gate to § 87(2)(b) on the stoop taking video of the incident. § 87(2)(b) was stating phrases to the effect of, “You have no right to do this to people.” An unidentified officer reached over the gate and pepper-sprayed § 87(2)(b) from a distance of about 5 feet. § 87(2)(a) Gen.Mun. §50-H(3)

§ 87(2)(b) believed that this was the same officer that pepper-sprayed § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated it could have been the unidentified Hispanic male, but could not say for sure.

§ 87(2)(b) also indicated that § 87(2)(b) was also at the incident location the entire time and took video footage of the incident. However, § 87(2)(b) could not testify as to any interaction § 87(2)(b) had with any officers at the location. § 87(2)(b) also indicated that § 87(2)(b) whose mother lives at § 87(2)(b), was also present for and witnessed this incident. As far as § 87(2)(b) knows, § 87(2)(b) did not have any interaction with any officers.

After § 87(2)(b) was pepper-sprayed, the officers slammed him face first to the ground, handcuffed him, and placed in a police van. From the van, he observed § 87(2)(b) getting

kicked by two male officers in uniform. When § 87(2)(b) was put into the van, § 87(2)(b) observed that he was bleeding profusely from his head.

Once in the holding cell at the 44th Precinct stationhouse, § 87(2)(b) requested medical attention for § 87(2)(b) and § 87(2)(b) echoed the request. EMS personnel responded and tended to § 87(2)(b). § 87(2)(b) asked PO Cabrera multiple times for water to rinse out his eyes, but PO Cabrera ignored him. § 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) were also arrested as a result of this incident, but could not testify as to the circumstances of their arrests or their actions at the incident location.

§ 87(2)(b) was processed at Central Booking and charged with § 87(2)(b). § 87(2)(b) did not seek any medical treatment as a result of this incident. § 87(2)(b) refused to provide the CCRB with video of the incident based on the advice of his attorney.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. She is a black female with black hair and brown eyes. She is 4'11" tall and weighs 193 pounds. § 87(2)(b)

CCRB Statement

On July 23, 2012, § 87(2)(b) was interviewed at the CCRB (Encl. 11A-11G). § 87(2)(g)

§ 87(2)(b) ran downstairs, alone, and confronted the officers about what they were doing to § 87(2)(b). § 87(2)(b) asked, from a distance of five feet, "Why are you doing this? He did not do anything wrong." § 87(2)(b) still had his hands up in the air and refused to give his arms to the officers. At this point, § 87(2)(b) and PO Cabrera were struggling on the steps in front of § 87(2)(b). PO Cabrera was described as a Hispanic male, approximately 5'3" tall, average build, and 25 to 30 years old. § 87(2)(b) and § 87(2)(b) were on the steps with § 87(2)(b) as well, pleading with PO Cabrera that § 87(2)(b) had not done anything wrong. § 87(2)(b) and § 87(2)(b) were not making any physical contact with PO Cabrera. An unidentified female officer was not assisting PO Cabrera at all, but made a call over the radio using a code. The female officer was described as a Hispanic female, taller than PO Cabrera, heavy set, with black hair in a ponytail, and 25 to 30 years old.

Approximately 20 police vehicles and 50 police officers responded to the location. § 87(2)(b) stated she saw police vehicles from both the 42nd and 44th Precincts.

At this point, approximately eight officers were trying to restrain § 87(2)(b). A white male officer in uniform, identified by the CCRB through investigation as PO Robert Meyer, pepper-sprayed § 87(2)(b). § 87(2)(b) was also punched by the officers. § 87(2)(b) indicated that § 87(2)(b) has ADHD and is "schizophrenic" and that when he gets angry it is difficult to restrain him. § 87(2)(b) stated that § 87(2)(b) does not take any medication. § 87(2)(b) was not aware of § 87(2)(b) having consumed any intoxicants on the date of the incident.

At this point, § 87(2)(b) had retreated to the steps of her house at § 87(2)(b). Another individual, § 87(2)(b) was on the steps of § 87(2)(b) taking video of the incident. § 87(2)(b) who had been outside the entire time, was taking video of the incident from across the street. § 87(2)(b) could not testify as to any interactions § 87(2)(b) had with officers.

An officer wearing a white shirt, identified by the CCRB through investigation as Lt. Johnny Orellana, put his forearm against § 87(2)(b) upper chest and throat and pushed him against the fence in front of § 87(2)(b). Lt. Orellana was described as a white male, approximately 5'11" to 6'0" tall, average build, with black hair, and in his 30s.

§ 87(2)(b) cursed at Lt. Orellana, saying, "What the fuck are you doing?" Two unidentified white male officers in uniform were also assisting Lt. Orellana. The two officers each punched § 87(2)(b) two to three times in the right rib area. § 87(2)(b) had his hands in the air and refused to let the officers grab his arms and handcuff him. § 87(2)(b) was pushing the officers away from § 87(2)(b) with her forearm and § 87(2)(b) was yelling at the officers to leave § 87(2)(b) alone. Consequently, § 87(2)(b) and § 87(2)(b) were both directly pepper-sprayed, as was § 87(2)(b) by an unidentified officer. The officers eventually forced § 87(2)(b) to the ground face first, and broke his glasses in the process.

Lt. Orellana then said to § 87(2)(b) "You're next, you're next." § 87(2)(b) replied, "Yeah, come get me." § 87(2)(b) never engaged physically with any officers and never got directly pepper-sprayed, but was victim to some residual pepper-spray in the air.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. He is a black male with black hair and brown eyes. He is 5'10" tall and weighs 280 pounds. § 87(2)(b)

CCRB Statement

On August 6, 2012, § 87(2)(b) was interviewed at the CCRB (Encl. 12A-12I). § 87(2)(g)

During the incident, an officer in plainclothes, identified by the CCRB through investigation as PO Greaney, pushed § 87(2)(b) down the block. § 87(2)(b) did not move though. PO Greaney then punched him approximately three times in the back. It felt as though it was a closed fist, though § 87(2)(b) could not see. § 87(2)(b) began repeating, "Don't touch me," and could not tell whether or not PO Greaney was saying anything. PO Greaney was described as a white male, wearing a blue shirt, with a bald head, and approximately 33 years old.

Eventually, PO Greaney ran up behind § 87(2)(b) and pulled his legs from under him, toppling him to the ground. Once on the ground, § 87(2)(b) ceased struggling, saying that he gave up. However, the officers placed their knees on his back and on the back of his neck, continuing to treat him roughly.

§ 87(2)(b) who believed that he had a right to observe and record the incident, went onto his own property, and began observing the incident from there. § 87(2)(b) began to record the incident. At one point, § 87(2)(b) also attempted to stop the officers from arresting § 87(2)(b) by getting between the officers and § 87(2)(b) but an officer repeatedly pushed him back with a baton, telling him to go home.

When the officers attempted to arrest him, § 87(2)(b) initially tried to stay rigid, but an officer twisted his arm behind his back, almost breaking it, causing him to say, "Ok stop. Stop." Eventually, officers placed § 87(2)(b) on the ground and began pepper spraying him. § 87(2)(b) did not know how many times he was pepper-sprayed.

Despite initially saying that he attempted to stop § 87(2)(b)'s arrest, § 87(2)(b) later said, while describing § 87(2)(b)'s interaction with officers, that he could not see § 87(2)(b)'s arrest from his vantage point.

At some point, § 87(2)(b) observed PO Greaney tackle § 87(2)(b) while he was recording the incident. At another point, while § 87(2)(b) was on his steps recording the

incident, an officer, identified by the CCRB through investigation as Lt. Johnny Orellana, who had been involved in the arrest of § 87(2)(b) walked by and calmly pepper-sprayed § 87(2)(b) who put his arm up, so that the spray only hit his arm. This was the only time during the incident that pepper spray was sprayed directly at § 87(2)(b). Lt. Orellana was described as male, possibly Indian, approximately 5'4" tall, slim build, and 37 years old.

After spraying § 87(2)(b) Lt. Orellana told him, "Keep it up. You're next." § 87(2)(b) who described himself as being very "vocal" during the entire incident, asked why, saying that he was just practicing his freedom of speech. Another officer walked by and threatened to arrest him. § 87(2)(b) asked why the officer threatened to arrest him, saying that he was on his own property, was exercising his freedom of speech by standing on his property, and adding that he had not done anything illegal.

An ambulance responded to the location for § 87(2)(b) but § 87(2)(b) told the EMS personnel to attend to § 87(2)(b) instead of himself. After approximately 15 to 20 minutes, officers began escorting the arrested individuals towards a police van, and then got in their vehicles and drove away.

Eventually, officers told the group what the charges against the arrested individuals were, and said that everyone would go to court the next day.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. She is a black female with brown hair and brown eyes. She is 5'7" tall. § 87(2)(b)

CCRB Statement

On August 15, 2012, § 87(2)(b) was interviewed at the CCRB (Encl. 13A-13G). § 87(2)(g)

A group of approximately five officers approached § 87(2)(b) on the stoop of § 87(2)(b) and attempted to restrain him. § 87(2)(b)'s back was against the building's door, with a plainclothes officer, identified by the CCRB through investigation as PO Michael Greaney of the 44th Precinct, holding his leg, and two officers by his sides trying to grab his arms. PO Greaney was described as a white male, approximately 5'9" tall, with a husky build, bald head, and wearing a blue t-shirt and khaki shorts. PO Gerson Cabrera, was repeatedly hitting § 87(2)(b)'s right ribcage area with a black baton. PO Cabrera was described as a Hispanic male, approximately 5'4" to 5'5" tall, average build, low cut hair, and 27 to 30 years old. An unidentified uniformed officer, stood inside the door area with his forearm wrapped around § 87(2)(b)'s neck. The officer was described as a black male, approximately 5'9" tall, husky build, with a bald head, and approximately 38 years old.

At some point during the incident, § 87(2)(b) came out and tried to grab § 87(2)(b) to get him away from the officers. § 87(2)(b) pleaded with § 87(2)(b) to stand back because things could get out of hand. The unidentified black male officer in uniform then stated to § 87(2)(b) "Step the fuck back." An officer, identified by the CCRB through investigation as PO Robert Meyer, from a distance of three to four feet, pepper-sprayed § 87(2)(b) in the face. § 87(2)(b) never made physical contact with the officers, nor was she given directives prior to being pepper sprayed. § 87(2)(b) was not pepper-sprayed during the incident. § 87(2)(b) was crying from the pepper spray, so § 87(2)(b) took her to a neighbor's apartment at § 87(2)(b) to wash her face. § 87(2)(b) then went back home and called for an ambulance. EMS arrived at approximately 12:16 a.m. Two male EMS workers assisted § 87(2)(b)

At some point after the crowd had dispersed, an unidentified officer who § 87(2)(b) could not describe, stated to § 87(2)(b) “shut the fuck up cunt.” § 87(2)(b) was standing behind the gate of § 87(2)(b) with § 87(2)(b) at the time. § 87(2)(b) never saw § 87(2)(b) interact with officers.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. She is a black female with brown hair and brown eyes. She is 5’5” tall and weighs 148 pounds.

CCRB Statement

On August 15, 2012, § 87(2)(b) was interviewed at the CCRB (Encl. 14A-14F). § 87(2)(b)

When she stepped outside, by herself, she saw two uniformed officers, PO Cabrera and an officer, identified by the CCRB through investigation as PO Francis Flynn, holding onto § 87(2)(b)s arms. PO Gerson Cabrera of Patrol Borough Bronx, was described as having a caramel complexion, possibly Hispanic, with light eyes, 5’1” to 6’0” tall, broad shoulders, and bald head, and in his 30s. PO Flynn was described as a white male, with a bald head, shorter than PO Cabrera, and in his 30s.

§ 87(2)(b) was holding § 87(2)(b)s right shoulder, and standing in shock. Some of the officers had taken out their batons and were hitting § 87(2)(b). An officer, identified by the CCRB through investigation as PO Robert Meyer, pepper-sprayed § 87(2)(b) in her open eyes and mouth. PO Meyer also jabbed § 87(2)(b) four times with a baton in the center of his stomach. § 87(2)(b) described the baton as being black with a handle. PO Meyer was described as a white male, approximately 6’0” tall, with blonde and gray hair, and in his 40s.

After being pepper-sprayed, § 87(2)(b) could no longer see anything. She could not get back into her house because police officers were blocking the doorway. An unidentified individual helped her down the steps.

Attempts to Contact Civilians

§ 87(2)(b) was contacted on June 28, 2012 and stated that he and several other people at the incident location were pepper sprayed and beat up by the police. § 87(2)(b) stated he personally was pepper sprayed, punched, and kicked (encl. 50C). § 87(2)(b) was scheduled to appear at the CCRB on July 12, 2012, August 15, 2012 and September 10, 2012, however, § 87(2)(b) failed to make his scheduled appointments and did not contact the CCRB to cancel or reschedule. On July 12, 2012 and August 16, 2012, missed appointment letters were sent to § 87(2)(b) and were not returned to the CCRB by the United States Postal Service.

On July 13, 2012, contact was established with § 87(2)(b) via telephone and he stated that on the incident date he was struck in the head with a baton, causing a laceration which required two staples (encl. 50F). The officer attempted to hit § 87(2)(b) again, but § 87(2)(b) was able to grab the baton. Officers knocked him to the ground, beat him, punched him, twisted his leg, and slammed his face, causing his glasses to break. § 87(2)(b) was placed under arrest. After numerous contact attempts, § 87(2)(b) stated that on the advice of his attorney, he was not going to cooperate with this investigation.

On July 12, 2012, a please call letter was sent to § 87(2)(b) and was not returned to the CCRB by the USPS. On July 17, 2012, contact was established with § 87(2)(b) via telephone and she stated that she was present for the incident, she was pepper-sprayed, and pushed (encl. 50F). § 87(2)(b) was not arrested or summonsed as a result of the incident. § 87(2)(b) was scheduled to appear at the CCRB on July 31, 2012, but § 87(2)(b) cancelled the appointment. Between August 15, 2012 and September 4, 2012, the CCRB attempted to contact

§ 87(2)(b) three times and left a voicemail message each time. On September 4, 2012, a final please call letter was sent to § 87(2)(b) and was not returned to the CCRB by the USPS.

On July 25, 2012 and September 4, 2012, please call letters were sent to § 87(2)(b) and were not returned to the CCRB by the USPS. A LexisNexis search for § 87(2)(b) yielded negative results for phone numbers.

On July 30, 2012 and September 4, 2012, please call letters were sent to § 87(2)(b) and § 87(2)(b) and were not returned to the CCRB by the USPS. A LexisNexis search for § 87(2)(b) and § 87(2)(b) yielded negative results for phone numbers.

On July 30, 2012, a please call letter was sent to § 87(2)(b) but it was returned to the CCRB by the USPS on August 14, 2012 due to insufficient address. A LexisNexis search for § 87(2)(b) yielded negative results.

On July 12, 2012 and July 25, 2012, please call letters were sent to § 87(2)(b) and were not returned to the CCRB by the USPS. A LexisNexis search for § 87(2)(b) yielded negative results.

On September 4, 2012, contact was established with § 87(2)(b) via telephone. She stated she did not want to participate in this investigation, nor did she want her sons to do so.

PO Michael Greaney of the 44th Precinct stated that he completed a Stop, Question, and Frisk Report for § 87(2)(b) during the incident. After obtaining the report, the CCRB sent two please call letters to § 87(2)(b) on June 28, 2013 and July 17, 2013 and they were not returned to the CCRB by USPS. A LexisNexis search for § 87(2)(b) yielded negative results.

According to a search of the New York City Department of Correction website conducted on August 7, 2012, § 87(2)(b) and § 87(2)(b) were not incarcerated at the time. To date, none of the aforementioned individuals have contacted the CCRB regarding this incident.

Video Footage

Video One – § 87(2)(b) IA # 46:

From 0:00 to 0:25, civilians can be heard yelling in the background. One individual repeats, “I got this on video.” A female can be heard saying, “He didn’t do anything.” PO Cabrera is walking after § 87(2)(b) who has no shirt on and is backing away from PO Cabrera. It appears as though PO Cabrera is shaking his Pepper spray in his right hand. PO Flynn is following PO Cabrera and appears to be rubbing his eyes. § 87(2)(b) can be heard saying, “§ 87(2)(b) go nigga.”

At 0:35, § 87(2)(b) walks up the steps of an apartment stoop and is pursued by PO Cabrera and PO Flynn. PO Flynn grabs § 87(2)(b) by the left arm, but § 87(2)(b) flails his right arm in the direction of PO Cabrera. An individual can heard yelling, “Wild out nigga.” A female is heard saying, “Why you spraying him?”

At 1:00, PO Flynn is standing behind § 87(2)(b) holding his arms, but also rubbing his eyes. § 87(2)(b) is on the stoop trying to pull § 87(2)(b) away from the officers. § 87(2)(b) wearing a bandanna, is also on the steps yelling.

At 1:15, PO Meyer arrives at the location and goes to the top of the stoop. He appears to punch § 87(2)(b) at least three times in the mid-section area of his body.

At 1:30, PO Cabrera is standing behind § 87(2)(b) holding his arms. PO Meyer is standing to their left and PO Christopher Egan is standing behind PO Meyer. PO Egan appears to be getting his pepper spray from his belt. A male individual can be heard saying, “He didn’t do nothing.” § 87(2)(b) is still climbing up the steps and trying to grab at § 87(2)(b) § 87(2)(b) is standing at the top of the stairs and appears to be trying to calm down § 87(2)(b) and

§ 87(2)(b) The officers are pinned between the civilians and the apartment entrance at the top of the steps.

From 1:45 to 2:05, § 87(2)(b) is not filming the officers or the crowd and appears to be walking. An unidentified individual yells, “They are macing everybody.”

At 2:05, § 87(2)(b) is filming the scene from further away. Numerous officers in uniform and civilians are on the sidewalk. § 87(2)(b) walks behind a marked police vehicle to the left of the stoop, where § 87(2)(b) is still struggling with the officers. A white male officer in uniform, standing at the bottom of the stoop, is coughing.

At 2:25, a female yells, “This is bullshit, yo.” Three male uniformed officers are standing at the bottom of the stoop. PO Cabrera is still holding § 87(2)(b) from behind. PO Meyer and PO Egan are still on the top of the stoop with them.

At 2:28, PO Greaney, wearing shorts and blue t-shirt, runs up the left side of the stairs and grabs § 87(2)(b) by the leg. PO Greaney pulls § 87(2)(b) down the stairs by his leg. § 87(2)(b) is on his back with an officer underneath him with an arm wrapped around him, supporting his head as he is carried down the steps. Several uniformed officers converge on § 87(2)(b). PO Greaney is in the foreground, holding onto § 87(2)(b)'s foot.

At 2:50, PO Greaney releases § 87(2)(b) and without saying anything, approaches § 87(2)(b). PO Greaney raises his right arm, with his elbow bent, toward § 87(2)(b) and the video ends.

Video Two – § 87(2)(b) IA # 73:

From 0:00 to 0:20, § 87(2)(b) is filming § 87(2)(b). § 87(2)(b) is backing toward him with his shirt off. PO Cabrera is walking after him with PO Flynn behind. § 87(2)(b) continually yells, “Got this on video.” At 0:13, PO Cabrera snaps open his asp with his right arm and holds it at his side. People are yelling for “§ 87(2)(b)” to “get on the ground.”

At 0:20, PO Flynn tries to grab § 87(2)(b) by the arm, but he moves away from the officers. § 87(2)(b) yells, “Why you spraying him? He ain’t even do nothing to you sir.” § 87(2)(b) walks away from where § 87(2)(b) is filming and up the steps of a stoop outside of an apartment. There are approximately 20 civilians on the sidewalk at this point, many of whom are yelling. PO Cabrera and PO Flynn are the only two officers at the location at this time.

At 0:35, PO Cabrera tries to grab § 87(2)(b) at the top of the stairs, but § 87(2)(b) turns and shoves him into the doorway of the apartment building and out of sight.

At 0:45, PO Cabrera and PO Flynn are struggling with § 87(2)(b) at the top of the steps. § 87(2)(b) was flailing his arms and not allowing the officers to grab him. PO Cabrera still has his asp in his hand, but he does not use it to strike § 87(2)(b). Civilians in the crowd are climbing the steps and yelling. § 87(2)(b) is screaming that § 87(2)(b) did not do anything and demanding that the officers let him go. The officers are pinned between the top of the steps and the apartment door. § 87(2)(b) climbs to the top of the steps and tries to grab § 87(2)(b) and gets between the officers.

At 1:00, PO Cabrera is standing behind § 87(2)(b) holding his arms and PO Flynn is trying to assist. § 87(2)(b) and § 87(2)(b) along with other civilians, are near the top of the steps yelling.

At 1:12, PO Meyer gets to the top of the stoop and tries to assist in subduing § 87(2)(b). PO Meyer strikes § 87(2)(b) twice in the stomach region with his left arm. § 87(2)(b) continually yells, “Y’all wrong for this. Y’all dead fucking wrong.” PO Egan also gets to the top of the stoop, and is standing behind PO Meyer.

At 1:33, PO Meyer can be seen calling into his radio.

At 1:45, PO Meyer pulls out his pepper spray and sprays toward the several individuals standing directly in front of the steps, including § 87(2)(b) § 87(2)(b) shouts, “You’re spraying little kids.”

At 1:50, several more officers are on scene and can be seen conducting crowd control and telling people to back up. The camera catches a quick glimpse of PO Greaney.

At 2:00, § 87(2)(b) starts saying, “Don’t touch me.” PO Greaney is instructing § 87(2)(b) to move because he is “blocking my path.” § 87(2)(b) says, “I’m not blocking your path. Don’t touch me.” He repeats, “Don’t touch me, don’t fucking touch me. Un-fucking real.”

At 2:30, Lt. Orellana and other uniformed officers can be seen arresting an individual. § 87(2)(b) yells, “So y’all are gonna arrest the whole block, because you all are wrong.”

At 2:50, numerous uniformed officers can be heard telling the crowd, “Back up, back up.” There are approximately 40 civilians on the block at this point, and the officers are still struggling with § 87(2)(b) on the stoop.

At 2:55, Lt. Orellana and another uniformed officer are trying to apprehend § 87(2)(b). A uniformed officer tells § 87(2)(b) multiple times to “Back up.” § 87(2)(b) yells, “What are you doing?”

At 3:15, Lt. Orellana has § 87(2)(b) pinned against a fence. Other uniformed officers are assisting him. A white male officer, in uniform, with a bald head and wearing glasses, is telling § 87(2)(b) to back up.

At 3:30, while Lt. Orellana and another uniformed officer are struggling with § 87(2)(b) the officer with the bald head and glasses turns and pepper sprays § 87(2)(b) § 87(2)(b) repeatedly yells, “What are you doing?” § 87(2)(b) then goes to the ground, though it is unclear how. Several uniformed officers, including Lt. Orellana, converge on § 87(2)(b) § 87(2)(b) along with the rest of the crowd, continue to yell.

From 4:00 to 4:16, § 87(2)(b) begins to yell and curse, saying, “You see this shit.” He scans the scene with his phone and then the video ends.

Video Three – § 87(2)(b) IA # 74:

From 0:00 to 0:40, § 87(2)(b) is panning the scene. The picture is blurry, but there are still numerous civilians and officers on the block. § 87(2)(b) continues to yell and curse. He says, “Spraying little kids and all with mace.” A female’s voice in the background can be heard yelling, “The whole fucking precinct.” She also yells, “Fucking law suit.” § 87(2)(b) yells, “What is wrong with y’all?” The female yells, “Your mother bitch.” An officer can be heard saying, “Stay back. Go inside.”

At 1:25, § 87(2)(b) says, “Camera got it all. Now you wonder why niggas don’t want to fucking help y’all niggas.”

At 2:50, Lt. Orellana walks by and points at § 87(2)(b) and it sounds as though he says, “Give it up. Next.” § 87(2)(b) then says, “Arrest me for what?” § 87(2)(b) starts shouting about freedom of speech. A female then says, “CCRB tomorrow.”

From 3:30 until the end of the video, § 87(2)(b) continued to span § 87(2)(b). It shows the police vehicles leaving the scene. § 87(2)(b) and other civilians are cursing and expressing their disapproval for the NYPD, particularly the 44th Precinct. They are threatening law suits, going to the CCRB, and also cursing at the officers.

NYPD Statements:

Subject Officer: OFFICER GERSON CABRERA

- *PO Cabrera is a § 87(2)(b)-old Hispanic male with black hair and brown eyes. He is 5’9” tall and weighs 180 pounds.*

When PO Cabrera realized that § 87(2)(b) was not going to leave the block, PO Cabrera approached him with the intention of issuing him a c-summons for disorderly conduct. PO Cabrera exchanged words with § 87(2)(b) but did not remember what specifically was said. PO Cabrera ordered § 87(2)(b) to turn around and put his arms behind his back. § 87(2)(b) refused to turn around and resisted arrest by refusing to give PO Cabrera his arms. PO Cabrera was trying to grab § 87(2)(b)'s arms, but he could not physically restrain him. PO Cabrera did not remember if PO Flynn was assisting him at this time.

PO Cabrera then used his pepper spray against § 87(2)(b). PO Cabrera was standing a few feet from § 87(2)(b) and struck him in the face with the spray. PO Cabrera did not remember how many blasts he used, but stated it was more than one, but less than five. PO Flynn did not use his pepper spray.

The pepper spray had little effect on § 87(2)(b) who continued to resist and move around. PO Cabrera then had to continue to use physical force. At this point, PO Flynn had radioed in the arrest and requested additional units to respond to the location. There was still a large crowd of civilians at the location making comments and yelling at the officers. PO Cabrera did not remember any specific statements.

PO Cabrera confirmed that he was the arresting officer for not only § 87(2)(b) but also § 87(2)(b) and § 87(2)(b). However, PO Cabrera did not have any interaction with them at § 87(2)(b) and only remembers them from their arrest processing.

The officers continued to struggle with § 87(2)(b) and it took approximately eight of them to finally subdue and handcuff him. PO Cabrera confirmed that he is trained to use an asp and was carrying one on the date of incident. During his struggle with § 87(2)(b) he did draw and extend his asp, but never used it against § 87(2)(b) or any other civilians at the location. PO Cabrera did not see PO Flynn brandish or use his asp against anyone at the location.

PO Cabrera stated that PO Egan and PO Meyer were among the many officers that responded to the location. Sgt. Junio Acosta, Lt. Johnny Orellana, PO Richard Young, and unidentified anti-crime officers from the 44th Precinct also responded to the location. There were also officers from the 42nd Precinct at the location, but PO Cabrera could not identify them or any additional officers. At the conclusion of the incident, Capt. Thomas Harnisch responded to the location, but PO Cabrera did not know what specific actions he took.

At this point, PO Cabrera was standing behind § 87(2)(b) attempting to hold his arms behind him, while PO Flynn, PO Egan, and PO Meyer assisted in trying to bring § 87(2)(b) to the ground. PO Egan and PO Meyer did not discharge their pepper spray or strike § 87(2)(b) with their asps. PO Cabrera did not punch, kick, or otherwise strike § 87(2)(b) nor did he see any other officer do so. PO Cabrera could not testify as to what actions Sgt. Acosta, Lt. Orellana, or PO Young took at the location.

PO Cabrera stated that no civilians physically interfered with him while trying to apprehend § 87(2)(b). PO Cabrera did not use his pepper spray against any civilians other than § 87(2)(b). PO Cabrera did not punch, kick, or otherwise strike any civilians at the location.

PO Cabrera did not say to any civilians, "Step the fuck back" or "shut the fuck up cunt." PO Cabrera did not remember hearing any other officer say as much. PO Cabrera did not remember using any profanity toward any civilians at the location, nor did he remember any other officers do so.

PO Cabrera was shown photos of § 87(2)(b) and § 87(2)(b). PO Cabrera did not recognize them and reiterated the fact that he did not interact with them at § 87(2)(b) and was only assigned as their arresting officer. PO Cabrera stated the only arrestee he interacted with was § 87(2)(b). PO Cabrera did not witness the circumstances of § 87(2)(b)'s apprehension. PO Young and Lt. Orellana informed PO Cabrera

about the arrests and stated the information was on the online booking sheets. PO Cabrera remembered that one of the arrestees broke PO Young's glasses.

PO Cabrera was shown photographs of § 87(2)(b) and § 87(2)(b) but did not recognize them or remember having any interaction with them, physical or otherwise.

An ambulance did not respond to § 87(2)(b) but EMS did respond to the stationhouse because § 87(2)(b) requested medical attention. § 87(2)(b) did not appear physically injured, but complained of his eyes burning from the pepper spray. PO Cabrera made sure that EMS saw all of the arrestees and made sure their eyes were rinsed out. No officers were injured during this incident.

PO Cabrera was shown the video taken by § 87(2)(b) at the incident location. PO Cabrera confirmed that he, PO Flynn, PO Egan, and PO Meyer were the officers on the stoop attempting to apprehend § 87(2)(b). PO Cabrera could not identify any other officers in the video. PO Cabrera stated the plainclothes officer in the blue shirt works either anti-crime or conditions at the 44th Precinct, but he did not know his name. At the time of the incident, PO Cabrera did not see the plainclothes officer interact or get physical with § 87(2)(b) as the end of the video indicates.

PO Cabrera was shown the two videos taken by § 87(2)(b) at the incident location. PO Cabrera acknowledged that the video shows him having his asp out, but he reiterated that he did not use it as he stated earlier. He acknowledged seeing PO Meyer use his pepper spray in the video, but stated he did not see it at the time of the incident. PO Cabrera identified the officer in the white shirt at Lt. Orellana, but could not identify any other officers in the video.

Subject Officer: OFFICER FRANCIS FLYNN

- PO Flynn is a § 87(2)(b)-old white male with brown hair and blue eyes. He is 5'9" tall and weighs 170 pounds.
- On June 19, 2012, PO Flynn worked from 2:30 p.m. to 10:35 p.m. He was dressed in uniform and assigned to Foot Post 7. At 10:35 p.m., PO Flynn was assigned to overtime working Shooting Reduction Post 2 with PO Gerson Cabrera.

Memo Book

At 11:05 p.m., pickup of a disorderly group in front of § 87(2)(b). At 11:08 p.m., disorderly male yelling and screaming, causing public annoyance and alarm. While affecting arrest, suspect offered extreme resistance by flailing arms, repeatedly refusing orders from officers to stop resisting. One under by PO Cabrera. At 11:20 p.m., arrived at 44th Precinct stationhouse (Encl. 21A-21C).

CCRB Statement

On March 29, 2013, PO Flynn was interviewed at the CCRB (Encl. 22A-22D). § 87(2)(g)

When PO Flynn went to assist in apprehending § 87(2)(b) who was flailing his arms and not allowing PO Cabrera to grab hold of him, he radioed in the arrest and then grabbed § 87(2)(b)'s right arm and pulled it behind him. There was a lot of yelling and screaming from the crowd. As PO Flynn grabbed § 87(2)(b) § 87(2)(b) elbowed him in the face. PO Cabrera repeatedly yelled, "Stop resisting." At this point, PO Flynn is still holding § 87(2)(b) from behind with his head buried in § 87(2)(b)'s back. The officers could not get § 87(2)(b) in handcuffs because he was offering too much resistance.

PO Cabrera then discharged his pepper spray which hit § 87(2)(b) and PO Flynn in the face. The pepper spray had little effect on § 87(2)(b). PO Flynn did not discharge his pepper

spray at this point or at any point during this incident. PO Flynn did not remember drawing his asp at the location. PO Flynn did not punch, kick or otherwise strike § 87(2)(b) nor did he see PO Cabrera do as much.

Sgt. Acosta responded to the location and radioed for additional units because the officers were severely outnumbered. PO Cabrera and PO Flynn were still trying to restrain § 87(2)(b) but he was offering too much resistance. § 87(2)(b) was walking back and forth on the sidewalk between three different stoops with his hands locked behind his head and saying something to the effect of, "I'm not going." Eventually PO Cabrera and PO Flynn ended up at the top of one of the stoops, still struggling with § 87(2)(b). PO Flynn was having difficulty seeing because of the pepper spray in his eyes. § 87(2)(b) grabbed hold of the stoop railing, locked his arms, and refused to let go.

Officers continued to arrive at the location because the scene had turned into a "mini-riot." PO Meyer and PO Egan, who were the first sector to respond, ran up the stoop and assisted in trying to restrain § 87(2)(b). At this point PO Flynn stepped back from § 87(2)(b) because he was struggling with the pepper spray in his eyes. PO Flynn did not see PO Meyer or PO Egan discharge their pepper spray. PO Flynn did not see what actions PO Meyer and PO Egan took. It eventually took approximately six officers to subdue and handcuff § 87(2)(b).

PO Flynn stated that PO Greaney arrived at the location, but he could not testify as to what specific actions he took. PO Flynn did not engage verbally or physically with any other civilians at the location once § 87(2)(b) was handcuffed. PO Flynn did not remember saying, "Step the fuck back" or using any profanity. He did not say to any females at the location, "Shut the fuck up cunt." PO Flynn did not remember hearing any officers use any profanity at the location. PO Flynn did not remember threatening anyone with force, nor did he hear any other officer do as much.

PO Flynn was shown photos of § 87(2)(b) and § 87(2)(b) but he did not recognize them.

PO Flynn did not witness the apprehension of any of the other arrestees. Other than PO Cabrera, he did not see any other officers discharge their pepper spray. He did not see any officers strike any civilians with asps or in any manner. PO Flynn did not know if an ambulance responded to the location.

Subject Officer: OFFICER ROBERT MEYER

- PO Meyer is a § 87(2)(b)-old white male with blond hair and blue eyes. He is 5'7" tall and weighs 180 pounds.
- On June 19, 2012, PO Meyer worked from 3:00 p.m. until 11:35 p.m. He was dressed in uniform and assigned to patrol in sectors ABC in the 44th Precinct with PO Christopher Egan. They were in marked RMP # 5426.

Memo Book

At 11:08 p.m., responded to a 10-85 (request for additional units) at § 87(2)(b) (Encl. 23A-23C).

CCRB Statement

On April 30, 2013, PO Meyer was interviewed at the CCRB (Encl. 24A-24C).

On June 19, 2012 at approximately 11:08 p.m., PO Meyer and PO Egan responded to a call for additional units at § 87(2)(b) in the Bronx. PO Meyer stated that numerous units responded to the location. Upon arrival, PO Meyer observed unidentified officers trying to

arrest an individual, identified by the CCRB as § 87(2)(b) on the steps of § 87(2)(b). There was also a large crowd gathered at the location.

PO Meyer assisted the officers in trying to apprehend § 87(2)(b). § 87(2)(b) resisted by fighting with the officers, namely “throwing his arms and kicking.” PO Meyer stated he was grabbing at § 87(2)(b)’s arms in order to restrain him. Officers were telling § 87(2)(b) to put his arms behind his back and to stop resisting, but § 87(2)(b) did not cooperate and held onto the metal handrail of the stoop.

PO Meyer did not remember punching § 87(2)(b) but reiterated that he was grabbing at his arms and “fighting” with him. PO Meyer did not remember seeing any officer punch, kick, or otherwise strike § 87(2)(b). PO Meyer stated that officers had asps and batons out, but could not specify which officers. PO Meyer did not remember himself or any other officer using an asp or baton against § 87(2)(b).

PO Meyer confirmed that he carries pepper spray and used it against § 87(2)(b) and other people in the crowd. PO Meyer indicated that the crowd of civilians was originally 60 to 80 people, but the crowd continued to grow as more and more people exited the surrounding buildings. The crowd was refusing officers’ directives to disperse and made PO Meyer fear for his safety. As such, he used his pepper spray against individuals in the crowd so that the officers could safely get through the crowd and out of danger.

PO Meyer could not remember if he assisted in affecting the arrest of any other individuals at the location or physically engaged with any other individuals. PO Meyer was shown a photo of § 87(2)(b) who he recognized from the stationhouse, but did not remember if he physically engaged with him at § 87(2)(b) or the circumstances of his arrest.

PO Meyer did not punch, kick, or otherwise strike any civilians at the location, nor did he see any other officer do as much. PO Meyer stated that officers did have asps and batons drawn, but he did not see any officer strike any civilians with a baton or asp. PO Meyer stated he left his baton in the RMP. PO Meyer did not recall if any other officer discharged their pepper spray. Other than using his pepper spray against § 87(2)(b) and to get through the crowd, PO Meyer did not use his pepper spray at any other time. PO Meyer did not tell anyone in the crowd to “step the fuck back” nor did he say “shut the fuck up cunt” to anyone. PO Meyer stated there was a lot of yelling and screaming and he did not remember what any other officers said. PO Meyer stated that he “might have” used profanity during the incident, but does not remember any specific incident or interaction. PO Meyer did not threaten anyone in the crowd with the use of force.

PO Meyer was shown the first video taken by § 87(2)(b). PO Meyer recognized § 87(2)(b) and acknowledged seeing himself arrive and assist in the arrest. PO Meyer stated that the point in the video, where it appears as though he might be punching § 87(2)(b) was him reaching for § 87(2)(b)’s arm. The video also shows that PO Meyer was also trying to call into his shoulder radio. PO Meyer acknowledged seeing himself use pepper spray against § 87(2)(b) and the two women on the steps. He stated he was trying to clear the crowd off the steps. PO Meyer stated that he was not involved in the apprehension of § 87(2)(b). PO Meyer could not identify the bald sergeant assisting in the apprehension of § 87(2)(b).

Subject Officer: OFFICER CHRISTOPHER EGAN

- PO Egan is a § 87(2)(b)-old white male with brown hair and brown eyes. He is 5’4” tall and weighs 150 pounds.
- On June 19, 2012, PO Egan worked from 4:00 p.m. to 12:00 a.m. He was dressed in uniform and assigned to patrol in sectors ABC in the 44th Precinct with PO Robert Meyer in a marked patrol car.

Memo Book

At 11:08 p.m., responded to a 10-85 (request for additional units) at § 87(2)(b) (Encl. 25A-25C).

CCRB Statement

On March 28, 2013, PO Egan was interviewed at the CCRB (Encl. 26A-26C).

Upon arrival at the location, PO Egan and PO Meyer assisted PO Cabrera and PO Flynn in arresting § 87(2)(b).

PO Egan stated that several people from the buildings “swarmed the officers” while they were trying to apprehend § 87(2)(b). Several individuals were grabbing at the officers trying to prevent them from apprehending § 87(2)(b).

PO Egan described the force used to apprehend § 87(2)(b) as just grabbing at his arms. The officers were trying to apprehend § 87(2)(b) and fend off other civilians who were interfering. PO Egan did not remember seeing PO Cabrera, PO Flynn, or PO Meyer discharge their pepper spray or draw their asps. He did not recall seeing any officer punch or otherwise strike § 87(2)(b). PO Egan did not recall doing as much.

Once § 87(2)(b) was under control, PO Egan conducted crowd control and tried to keep people back from the scene. PO Egan stated that he felt threatened by the crowd based on its size, their anger, and statements made. PO Egan could not remember any specific statements.

When asked if he stated to any civilians, “Step the fuck back,” PO Egan responded, “Possibly.” He clarified by saying he did not remember saying that, but said it was possible. He did not remember using any profanity, but said it was possible. He did not recall hearing any other officer state, “Step the fuck back.” PO Egan did not recall hearing any officer say to any females at the location, “shut the fuck up cunt.” PO Egan did not say as much. PO Egan did not see any officer discharge pepper spray at the location, but could sense it in the air. He did not see any officer strike any civilians with an asp.

PO Egan was shown two videos, one taken by § 87(2)(b) and one taken by § 87(2)(b). PO Egan acknowledged seeing himself and PO Meyer assisting PO Cabrera and PO Flynn in apprehending § 87(2)(b). PO Egan acknowledged seeing PO Meyer discharge his pepper spray in the video, but reiterated that he did not see it at the time of the incident.

Subject Officer: LIEUTENANT JOHNNY ORELLANA

- Lt. Orellana is a § 87(2)(b)-old Hispanic male with black hair and brown eyes. He is 5’8” tall and weighs 175 pounds.
- On June 19, 2012, Lt. Orellana worked from 2:45 p.m. to 11:30 p.m. He was dressed in uniform and assigned as the Platoon Commander in the 44th Precinct. Lt. Orellana was assigned with an unidentified operator in a marked RMP.

Memo Book

At 11:10 p.m., 10-85 (request for additional units) at § 87(2)(b). At 11:30 p.m., five under arrest in regards (Encl. 27A-27C).

CCRB Statement

On April 12, 2013, Lt. Orellana was interviewed at the CCRB (Encl. 29A-29C).

On June 19, 2012 at approximately 11:10 p.m., Lt. Orellana responded to a call for additional units, put out over the radio by PO Gerson Cabrera, at § 87(2)(b) in the Bronx. Upon arrival, Lt. Orellana observed a large crowd of approximately 20 to 30 civilians, and officers, “tussling and pushing” each other. Lt. Orellana observed PO Cabrera and several

other unidentified officers trying to arrest § 87(2)(b) Lt. Orellana was shown a photo of § 87(2)(b) and confirmed that he was the individual PO Cabrera and the other officers were trying to arrest.

§ 87(2)(b) was resisting and fighting with the officers by refusing to put his hands behind his back. Lt. Orellana, who was the ranking officer at the location, was instructing the officers to move § 87(2)(b) away from the crowd, which was engaging physically with the officers and interfering with their ability to handcuff § 87(2)(b) Lt. Orellana stated that he and other officers were trying to keep the crowd back, but they refused, which ultimately led to the arrest of four other individuals.

Lt. Orellana did not see PO Cabrera, or any other officer, discharge their pepper spray or punch or strike § 87(2)(b) Lt. Orellana did not remember PO Cabrera or any other officer drawing their asp. Lt. Orellana stated that he did not physically assist the officers in trying to subdue and apprehend § 87(2)(b) but did assist in arresting other individuals.

Lt. Orellana was shown a photo of § 87(2)(b) who he recognized and stated he assisted in handcuffing. Lt. Orellana observed unidentified officers struggling with § 87(2)(b) who was resisting by refusing to put his arms behind his back. Lt. Orellana stated that § 87(2)(b) was a large individual. Lt. Orellana described the force used to overcome § 87(2)(b) resistance as grabbing and controlling his arms. Lt. Orellana did not punch or strike § 87(2)(b) nor did he see any other officer do so. Lt. Orellana did not see an officer use pepper spray against § 87(2)(b) nor did he remember any officer using pepper spray during the incident. Lt. Orellana further confirmed that he is trained to use an asp and was carrying one on the date of incident, but did not use it against any civilians.

After § 87(2)(b) was subdued and arrested, Lt. Orellana continued to instruct the officers to get the crowd under control. Lt. Orellana stated that several requests for additional units were made during this incident. Lt. Orellana stated that Sgt. Junio Acosta and Capt. Thomas Harnisch responded to the location, but he could not testify as to what specific actions they took.

Lt. Orellana was shown a photo of § 87(2)(b) who he recognized and acknowledged assisting in apprehending. When Lt. Orellana and unidentified officers tried to arrest § 87(2)(b) he resisted by refusing to put his arms behind his back when ordered to do so by officers. The force used by the officers was simply grabbing and controlling § 87(2)(b)'s arms. Lt. Orellana did not punch or strike § 87(2)(b) nor did he see any other officer do so. Lt. Orellana did not, nor did he see any officer use pepper spray or an asp against § 87(2)(b)

Lt. Orellana, in addition to effecting the arrests of § 87(2)(b) and § 87(2)(b) also conducted crowd control. Lt. Orellana indicated that crowd control was his main intent at the location. In the process of conducting crowd control, Lt. Orellana did not tell anyone to “step the fuck back,” nor did he hear any other officer say as much. Lt. Orellana did not say to a female civilian, “shut the fuck up cunt,” nor did he hear any other officer say so. Lt. Orellana did not use any profanity at all during this incident and did not remember any other officer doing so.

Lt. Orellana was shown the summons he issued to § 87(2)(b) on the date of the incident at § 87(2)(b) Lt. Orellana confirmed that he issued the summons, but did not remember the circumstances or § 87(2)(b)

Lt. Orellana did not observe any injuries to the arrestees that he dealt with, nor did he remember them complaining of any injuries. Lt. Orellana did not know if an ambulance responded to the location. Lt. Orellana was not sure if any officers were injured during this incident. Lt. Orellana did not sign off on any Line of Duty paperwork for this incident.

Subject Officer: OFFICER MICHAEL GREANEY

- *PO Greaney is a § 87(2)(b)-old white male with a bald head and blue eyes. He is 5'10" tall and weighs 220 pounds.*

- PO Greaney worked from 8:30 p.m. on June 19, 2012 to 5:05 a.m. on June 20, 2012. He was dressed in plainclothes and assigned to the Anti-Crime Unit in the 44th Precinct with PO Eric Miller. The officers were assigned to unmarked RMP #§ 87(2)(b).

Memo Book

At 11:07 p.m., responded to a 10-85 (request for additional units) at § 87(2)(b). One female black was stopped in front of § 87(2)(b) for § 87(2)(b) § 87(2)(b) (DOB: § 87(2)(b)). Handcuffed and released at the scene. 10-93Q (report prepared) UF 250 (Encl. 30A-30B).

Stop, Question, and Frisk Report (UF 250)

The UF 250 report prepared by PO Greaney on June 19, 2012, notes that he handcuffed and detained § 87(2)(b) under the suspicion of obstructing governmental administration because she was interfering with a lawful arrest. The report also states that § 87(2)(b) was refusing to comply with the officer's orders, she was irate, and stated, "This is why cops get shot" (Encl. 31A).

CCRB Statement

On April 25, 2013, PO Greaney was interviewed at the CCRB (Encl. 32A-32C).

On June 19, 2012 at approximately 11:07 p.m., PO Greaney and PO Miller responded to a request for additional units at § 87(2)(b) in the Bronx.

Several officers were trying to apprehend an individual, identified by the CCRB as § 87(2)(b) who was not cooperating by holding onto the railing of a stoop. PO Greaney did not remember seeing any of the officers strike or punch § 87(2)(b). PO Greaney stated that he did see unidentified officers with their asps drawn, but did not see the officers strike any civilians with their asps. PO Greaney stated that he knew pepper spray had been discharged, based on the smell in the air, but he did not see any officer discharge pepper spray, nor did he see any officer with a pepper spray device in their hand.

PO Greaney stated that he is trained to use an asp, but was not carrying one on the night of the incident. PO Greaney stated that his pepper spray was in his vehicle during this incident and he did not use it against any civilians. PO Greaney stated he did not remember punching, kicking, or striking any civilians during this incident, nor did he see any other officers do so.

PO Greaney stated that a civilian, § 87(2)(b) was trying to video tape the incident and was interfering with the officers ability to affect the arrest of § 87(2)(b). PO Greaney placed § 87(2)(b) in handcuffs in order to keep her under control and then left her in the custody of an unidentified officer. PO Greaney stated that § 87(2)(b) was under arrest for OGA, but later released at the scene under his discretion. PO Greaney prepared a UF 250 to document the incident with § 87(2)(b).

PO Greaney then assisted officers in apprehending § 87(2)(b) by pulling him to the ground and holding him while other officers handcuffed him. PO Miller also assisted in subduing and apprehending § 87(2)(b). PO Greaney did not assist in effecting the arrest of any other individuals at the location.

PO Greaney also conducted crowd control at the location, namely, ordering people to "get back." PO Greaney did not remember saying to any civilians, "step the fuck back" or "shut the fuck up cunt." He did not remember hearing any other officer say as much. PO Greaney did not remember using any profanity during the incident, and did not remember any other officer doing so.

PO Greaney stated that civilians, in addition to § 87(2)(b) were taking video footage of the incident. PO Greaney stated he did not remember physically engaging with or striking

anyone who was taking video footage. PO Greaney was shown photographs of § 87(2)(b)

and § 87(2)(b) but he did not recognize them.

PO Greaney was shown the video footage taken by § 87(2)(b) during the incident. PO Greaney identified himself as the officer with the blue t-shirt and khaki shorts assisting in apprehending § 87(2)(b). PO Greaney identified PO Miller as the other plainclothes officer who assisted in apprehending § 87(2)(b). PO Greaney also identified PO Robert Meyer as the white male officer with the mustache.

PO Greaney viewed the end of § 87(2)(b)'s video, where PO Greaney approaches § 87(2)(b) and the video ends. PO Greaney stated that he probably told § 87(2)(b) to get back and "thanks for the help." When asked by the CCRB if he struck or knocked § 87(2)(b) down, PO Greaney stated that he did not remember what happened. PO Greaney was shown § 87(2)(b)'s photo a second time, but he still did not recognize him.

Subject Officer: OFFICER ERIC MILLER

- PO Miller is a § 87(2)(b)-old black male with black hair and brown eyes. He is 5'8" tall and weighs 160 pounds.
- On June 19, 2012, PO Miller worked from 8:30 p.m. to 5:05 a.m. He was dressed in plainclothes and assigned to the Anti-Crime Unit in the 44th Precinct with PO Michael Greaney. They were in a black unmarked car, # § 87(2)(b).

Memo Book

PO Miller did not prepare any memo book entries for this incident (Encl. 33A-33C).

CCRB Statement

On June 4, 2013, PO Miller was interviewed at the CCRB (Encl. 34A-34C). § 87(2)(b)

(g)

PO Miller described the force used by the officers against § 87(2)(b) as grabbing his arms and trying to handcuff him. PO Miller assisted, but because § 87(2)(b) had no shirt on and was very sweaty, it was difficult to grab him. PO Miller ordered § 87(2)(b) to "stop" because he had his leg wrapped around an officer. PO Greaney was assisting in subduing § 87(2)(b) as well, but PO Miller could not testify as to what specific actions PO Greaney took. During the course of the struggle, PO Miller ended up on the ground with § 87(2)(b) on top of him.

After § 87(2)(b) was handcuffed, PO Miller conducted crowd control so that officers could get § 87(2)(b) into a police vehicle. PO Miller stated it was difficult to get § 87(2)(b) away from the scene due to the number of people. PO Miller did not say, "Get the fuck back" or "shut the fuck up cunt" to anyone in the crowd, nor did he hear any other officer say as much. PO Miller did not use any profanity at the location, nor did he hear any other officer do so.

PO Miller did observe civilians taking video footage of the incident. PO Miller did not see PO Greaney strike or push any individual with his forearm during the incident.

PO Miller was shown video footage taken by § 87(2)(b). PO Miller identified himself and PO Greaney on the video. PO Miller stated that the video corroborated what he stated about his role in this incident. He acknowledged seeing PO Greaney interact with § 87(2)(b) in some manner, but, did not see it at the time of the incident. PO Miller did not wish to add anything to his testimony following the viewing of the videos.

Witness Officer: OFFICER RICHARD YOUNG

- PO Young is a § 87(2)(b)-old white male with blonde hair and blue eyes. He is 6'4" tall and weighs 225 pounds.
- On June 19, 2012, PO Young worked from 3:00 p.m. to 11:35 p.m. He was dressed in uniform and assigned to patrol in sectors KMM in the 44th Precinct with PO Kwame Pascal. They were in marked police car # 3113.

Memo Book

At 11:05 p.m., 10-85 (request for additional units) at § 87(2)(b) and § 87(2)(b) § 87(2)(b) At 11:30 p.m., one under arrest. § 87(2)(b) At 12:15 a.m., ordered to give prisoner to PO Cabrera (Encl. 35A-35D).

CCRB Statement

On April 26, 2013, PO Young was interviewed at the CCRB (Encl. 36A-36C). § 87(2)(g)

Upon arrival, PO Young observed a "riotous" scene. There were approximately 75 civilians mobbed at the location. People were screaming "fuck the police" and items such as bottles and dirty diapers were being thrown from building windows and rooftops.

PO Young established a perimeter around the officers and conducted crowd control. § 87(2)(b) attempted to get through the police line and was told several times to walk around the incident, but he refused. PO Young told § 87(2)(b) that if he did not comply with the lawful order he would be arrested. § 87(2)(b) still refused. An unidentified sergeant from an unidentified command told PO Young to arrest § 87(2)(b)

When PO Young tried to apprehend § 87(2)(b) he resisted by refusing to place his arms behind his back. Additional unidentified officers assisted PO Young in getting § 87(2)(b) to the ground. In bringing § 87(2)(b) to the ground, he flailed his arm and knocked PO Young's prescription glasses from his face. Once on the ground, § 87(2)(b) continued to resist by putting his arms under his chest. PO Young stated he had to grab § 87(2)(b)'s arm and twist it a bit in order to get him in handcuffs. During this time, PO Young's glasses were broken because § 87(2)(b) § 87(2)(b) ground them into the concrete while he was resisting. PO Young stated he did not believe that he punched, kicked, or struck § 87(2)(b) nor did he see any other officer do as much.

PO Young confirmed that he was carrying an asp and pepper spray on the date of the incident. PO Young stated that he did not believe he used his asp during this incident and did not use his pepper spray.

While conducting crowd control, PO Young did not say to any civilians, "Step the fuck back," nor did he hear any other officer say as much. PO Young did not say to any civilian, "Shut the fuck up cunt," nor did he hear any other officer do so.

PO Young did not remember § 87(2)(b) having any injuries following his arrest. PO Young stated that he did not affect the arrest of any individuals at the location other than § 87(2)(b) § 87(2)(b)

Witness Officer: SERGEANT JUNIO ACOSTA

- Sgt. Acosta is a § 87(2)(b)-old Hispanic male with black hair and brown eyes. He is 6'0" tall and weighs 220 pounds.
- On June 19, 2012, Sgt. Acosta worked from 1:48 p.m. to 2:45 a.m. He was dressed in uniform and assigned as the Impact Sgt. in the 44th Precinct with PO Jessica Echevarria in marked van # 8669.

Memo Book

At 11:10 p.m., 10-85 (request for additional units) at § 87(2)(b) and § 87(2)(b) PO Cabrera attempting to arrest male/black who is refusing to get arrested by flailing arms, pushing officers. Violent crowd formed at location. Numerous people fighting with police at scene and refusing to comply with orders to disperse (Encl. 37A-37C).

CCRB Statement

On April 30, 2013, Sgt. Acosta was interviewed at the CCRB (Encl. 38A-38C). § 87(2)(g)

Sgt. Acosta did not see PO Cabrera or any other officers punch or strike § 87(2)(b). Sgt. Acosta did see officers with asps drawn, but could not identify which officers. He did not see any officer strike § 87(2)(b) with an asp. Sgt. Acosta stated that pepper spray was used because some of it got in his own eyes, but he did not see which officer discharged the pepper spray or who the spray was used against. Sgt. Acosta did not physically engage with § 87(2)(b) or try to assist in his apprehension.

Sgt. Acosta conducted crowd control and tried to disperse the crowd. An unidentified female, kept trying to push past the officers and video tape the incident with her cell phone. Sgt. Acosta kept telling the female to get back and to let the officers do their job, but she refused to disperse. The female was very “rude” and was cursing at the officers. Other officers were trying to get her disperse as well. Sgt. Acosta described the female as a black and between the age of 20 and 25. Sgt. Acosta did not get any identifying information from the female.

Sgt. Acosta did not physically assist in apprehending any individuals at the location. Sgt. Acosta stated he just remembered a lot of grappling and struggling between civilians and officers. Sgt. Acosta did not say to any individuals at the location, “step the fuck back,” or “shut the fuck up cunt,” nor did he hear any other officer say as much. Sgt. Acosta stated that there was a lot of yelling and noise at the location, but did not hear any profanity used by officers.

Sgt. Acosta stated that Lt. Johnny Orellana was at the location, but could not testify as to any specific actions he took. Sgt. Acosta did not see Capt. Thomas Harnisch at the location and did not know if there were any other supervisors at the location.

Sgt. Acosta did not know what actions PO Echevarria took at the location because he lost track of her in the melee.

Sgt. Acosta was shown the video taken by § 87(2)(b). Sgt. Acosta identified himself at one point as just standing on the sidewalk. He also noted that § 87(2)(b) should have been arrested based on her behavior in the video. Sgt. Acosta acknowledged seeing PO Greaney and PO Miller on the video. Sgt. Acosta did not see the interaction PO Greaney had with § 87(2)(b) at the time of the incident.

Witness Officer: OFFICER KWAME PASCAL

- PO Pascal is § 87(2)(b)-old black male with black hair and brown eyes. He weighs 230 pounds.
- On June 19, 2012, PO Pascal worked from 3:00 p.m. to 11:35 p.m. He was dressed in uniform and assigned to patrol sector KMN in the 44th Precinct with PO Richard Young. They were in marked police vehicle # 3113.

Memo Book

At 11:20 p.m., backing a unit for a 10-85 (request for additional units) at § 87(2)(b) and § 87(2)(b) (Encl. 39A-39D).

CCRB Statement

On April 26, 2013, PO Pascal was interviewed at the CCRB (Encl. 40A-40C). § 87(2)(g)

§ 87(2)(g)

Upon arrival, PO Pascal observed a “mob” of people. PO Pascal immediately ran toward a group of officers that were trying to apprehend an unidentified individual, but there were too many officers in his way and he was not able to assist in the apprehension.

PO Pascal stated that he conducted crowd control at the location and did not assist in physically apprehending any individuals.

NYPD Documents

SPRINT Report

SPRINT Report number § 87(2)(b) from June 19, 2012 shows that at approximately 11:08 p.m., officers from the 42nd Precinct and the 44th Precinct responded to a 10-85 (request for additional units) at § 87(2)(b) in the Bronx. At 11:11 p.m., another request for additional units was made. § 87(2)(b) called 911 and stated her brother, § 87(2)(b) was being assaulted. § 87(2)(b) also called 911 and requested EMS. EMS was on scene at 11:20 p.m. The 44th Precinct’s conditions sergeant was instructed to call IAB upon completion of the job (Encl. 41A-41H).

Command Log

The Command Log from the 44th Precinct notes that at 11:30 p.m. on June 19, 2012, § 87(2)(b) and § 87(2)(b) were logged into the stationhouse by PO Cabrera. Their physical and mental conditions are listed as appearing normal. At 4:20 a.m. on June 20, 2012, the arrestees were transported to Bronx Central Booking (Encl. 43A-43B).

Arrest Photos

The arrest photos for § 87(2)(b) and § 87(2)(b) from June 19, 2012 do not show any visible injuries. § 87(2)(b)’s photograph shows redness to his nose and above his right eyebrow (Encl. 46A-46C).

Arrests for Incident and Dispositions

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of April 4, 2013, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York with regard to the incident, which is seven months past the 90-day filing deadline (Encl. 49B).
- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming forcible and false arrest, loss of freedom, contusions, abrasions and irritations, invasion of person and privacy, and loss of vocation and avocations and seeking \$1,000,000 as redress (Encl. 49B-49F). A 50-h Hearing was held § 87(2)(a) Gen.Mun. §50-41(2) (Encl. 9A-9AZ).
- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming numerous injuries, medical expenses, and disruption and interruption of daily lifestyle, chores, and activities. There is no dollar amount for redress listed in the claim (Encl. 49G-49K). A 50-h Hearing was held on § 87(2)(a) Gen.un. §50-41(2)

§ 87(2)(b) §§ 86(1)(3)&(4) § 87(2)(c)

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (Encl. 3A, 3D, & 3E).
- § 87(2)(b) has filed the following CCRB complaints (Encl. 3F):
 - § 87(2)(b)
- § 87(2)(b) has filed the following CCRB complaints (Encl. 3C):
 - § 87(2)(b)

Subject Officers CCRB History

- PO Cabrera has been a member of the service for three years and there are no substantiated CCRB allegations against him (Encl. 2A).
- Lt. Orellana has been a member of the service for 15 years and there are no substantiated CCRB allegations against him (Encl. 2F-2G).
- PO Egan has been a member of the service for nine years and there are no substantiated CCRB allegations against him (Encl. 2E).
- PO Flynn has been a member of the service for two years and there are no substantiated CCRB allegations against him (Encl. 2B).
- PO Meyer has been a member of the service for 22 years and there is one substantiated CCRB allegation against him (Encl. 2C-2D).
 - In CCRB case number 200106024, an allegation of force (pepper spray) was substantiated against PO Meyer. The Board recommended charges. PO Meyer was issued instructions by the NYPD.
- PO Greaney has been a member of the service for five years and there are two substantiated CCRB allegations against him (Encl. 2H-2I).
 - In CCRB case number 201017328, two allegations of abuse of authority (frisk and search) were substantiated against PO Greaney. The Board recommended charges. The NYPD issued PO Greaney instructions for the frisk allegation, but declined to prosecute the search allegation.
- PO Miller has been a member of the service for six years and there are two substantiated CCRB allegations against him (Encl. 2J-2K).
 - In CCRB case number 200914335, an allegation of abuse of authority (stop) was substantiated against PO Miller. The Board did not make any recommendations. The Department declined to prosecute.

- In CCRB case number 201110762, an allegation of abuse of authority (vehicle stopped) was substantiated against PO Miller. The Board recommended charges. The Department declined to prosecute.

Conclusion

Identification of Subject Officers

Officers Cabrera, Meyer, Greaney, Young, and Lt. Orellana, acknowledged interacting with the civilians during this incident.

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A: Force – Officer Gerson Cabrera used pepper spray against

§ 87(2)(b)

It is undisputed that PO Cabrera used his pepper spray against § 87(2)(b) PO Cabrera confirmed using his pepper spray because he was physically unable to restrain § 87(2)(b) who was resisting arrest by refusing to give PO Cabrera his arms. PO Flynn stated that § 87(2)(b) was flailing his arms and elbowed him in the face when he tried to assist PO Cabrera. § 87(2)(b) and § 87(2)(b) confirmed that § 87(2)(b) refused to give the officers his arms.

According to Patrol Guide Procedure 212-95, the use of pepper spray is proper when used to effect the arrest of a resisting suspect, for self-defense, or establish control of a suspect resisting arrest or attempting to flee from custody (Encl. 1A-1D).

§ 87(2)(g)

Allegation B: Force – Officer Gerson Cabrera used physical force against

§ 87(2)(b)

Allegation C: Force – Officer Francis Flynn used physical force against

§ 87(2)(b)

Allegation D: Force – Officer Robert Meyer used physical force against

§ 87(2)(b)

Allegation E: Force – Officer Christopher Egan used physical force against

§ 87(2)(b)

Allegation F: Force – Officer Michael Greaney used physical force against

§ 87(2)(b)

It is undisputed that some measure of force was used against § 87(2)(b) The officers acknowledge restraining and wrestling to get his arms. PO Greaney stated he pulled § 87(2)(b) to the ground and restrained him while other officers placed him in handcuffs. The video footage confirms as much. § 87(2)(b) and § 87(2)(b) alleged that § 87(2)(b) was punched multiple times during the incident by various officers. No officer acknowledged punching § 87(2)(b) nor did they see any other officer do so, but the video does show PO Meyer punch § 87(2)(b) in the mid-section of his body. § 87(2)(b) did not cooperate with this investigation.

According to Patrol Guide Procedure 203-11, only the amount of force necessary to overcome resistance will be used to effect an arrest (Encl. 1E-1F).

§ 87(2)(g)

Allegation G: Force – Officers struck § 87(2)(b) and § 87(2)(b) with their asps.

§ 87(2)(b) alleged that officers struck § 87(2)(b) and § 87(2)(b) with their asps. No officer acknowledged striking any individuals with their asps.

§ 87(2)(b) and § 87(2)(b) did not cooperate with this investigation.

§ 87(2)(g)

Allegation H: Force – Officer Robert Meyer used pepper spray against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that PO Meyer pepper-sprayed § 87(2)(b) and § 87(2)(b) confirmed that they were pepper-sprayed, but only § 87(2)(b) identified PO Meyer as having done so. § 87(2)(b) and § 87(2)(b) did not cooperate with this investigation.

PO Meyer stated that the crowd was refusing officers' directives to disperse and made PO Meyer fear for his safety. As such, he used his pepper spray so that the officers could safely get through the crowd and out of danger. The video footage confirms that PO Meyer directed his pepper spray towards several individuals. It is evident from the video footage that § 87(2)(b) was hit with the pepper spray.

According to Patrol Guide Procedure 212-95, the use of pepper spray is proper when used to effect the arrest of a resisting suspect, for self-defense, or establish control of a suspect resisting arrest or attempting to flee from custody. Additionally, officers should avoid discharging pepper spray indiscriminately over a large area for disorder control (Encl. 1A-1D).

§ 87(2)(g)

Allegation I: Force – An officer used pepper spray against § 87(2)(b)

§ 87(2)(b) alleged that while he was observing the arrest of § 87(2)(b) an unidentified officer pepper-sprayed him. § 87(2)(b) could not provide a description or any identifying information for this officer. No officer acknowledged interacting with § 87(2)(b) other than PO Greaney. PO Greaney denied using his pepper spray at the incident. The video footage does not show when § 87(2)(b) was pepper-sprayed.

§ 87(2)(g)

Allegation J: Force – Lieutenant Johnny Orellana used physical force against § 87(2)(b)

Allegation K: Force – An officer used physical force against § 87(2)(b)

Allegation L: Force – An officer used pepper spray against § 87(2)(b)
and § 87(2)(b)

§ 87(2)(b) stated that Lt. Orellana struck him, with an open palm, three to four times in the rib cage area. § 87(2)(b) also alleged that an unidentified officer punched him a single time in his left rib cage. § 87(2)(b) alleged that he was then pepper-sprayed in the eye by an unidentified officer. § 87(2)(b) stated he was refusing to give the officers his arms and “tensed” his body when they tried to arrest him. § 87(2)(b) alleged that while she was trying to push the officers away from § 87(2)(b) who was being arrested, an unidentified officer pepper-sprayed her, § 87(2)(b) and § 87(2)(b).

Lt. Orellana was the only officer that acknowledged interacting with § 87(2)(b) but denied using pepper spray against him and did not see any other officer do so. Lt. Orellana denied punching § 87(2)(b) and did not see any other officer do so. No other officer stated that they used pepper spray against § 87(2)(b). The first video taken by § 87(2)(b) clearly shows Lt. Orellana and two other officers trying to restrain him, but it is unclear if any punches were thrown.

According to Patrol Guide Procedure 203-11, only the amount of force necessary to overcome resistance will be used to effect an arrest (Encl. 1E-1F). Also, according to Patrol Guide Procedure 212-95, the use of pepper spray is proper when used to effect the arrest of a resisting suspect, for self-defense, or establish control of a suspect resisting arrest or attempting to flee from custody (Encl. 1A-1D).

§ 87(2)(g)

Allegation M: Force – Officers used physical force against § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that officers used physical force against § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) did not cooperate with this investigation. § 87(2)(g)

Allegation N: Force – Officer Michael Greaney used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while he was videotaping the arrest of § 87(2)(b) PO Greaney, without saying anything, ran towards him, struck him in the right cheek area with his right

forearm, and then struck him in the upper chest with his left forearm. § 87(2)(b) alleged that this action caused him to fall backwards over a car and land on his lower back.

The video footage provided by § 87(2)(b) corroborates that PO Greaney approached him and initiated some manner of physical contact. PO Greaney denied striking § 87(2)(b). Upon viewing the video, PO Greaney stated he did not remember the interaction.

According to Patrol Guide Procedure 203-11, only the amount of force necessary to overcome resistance will be used to effect an arrest. It further states that excessive force will not be tolerated (Encl. 1E-1F).

§ 87(2)(g)

Allegation O: Force – Officer Michael Greaney used physical force against § 87(2)(b)

§ 87(2)(b) alleges that while he was walking away from the scene, PO Greaney punched him with what felt like three closed fists in the back. PO Greaney did not remember physically engaging with, or striking anyone who was taking video footage, nor did he recognize § 87(2)(b) from the incident. On the video footage taken by § 87(2)(b) he can be heard saying repeatedly, “Don’t touch me.” However, PO Greaney is not visible on the video footage at this time.

§ 87(2)(g)

Allegation P: Force – Lieutenant Johnny Orellana used pepper spray against § 87(2)(b)

§ 87(2)(b) alleged that while he was recording the incident on his steps, Lt. Orellana casually walked by him and discharged his pepper spray, which § 87(2)(b) stated he was able to block with his arm. § 87(2)(b) stated in his CCRB testimony that an officer attempted to pepper spray § 87(2)(b) § 87(2)(a) Gen.Mun. §50-H(3)

Lt. Orellana stated he did not use his pepper spray during this incident § 87(2)(g)

§ 87(2)(g) .

Allegation Q: Force – Officers spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that while § 87(2)(b) was trying to pull § 87(2)(b) away from the officers, she was pleading with § 87(2)(b) to stand back, at which point an officer told her to “shut the fuck up.” § 87(2)(b) further alleges that while she was standing with § 87(2)(b) an officer, who was previously restraining § 87(2)(b) said to her, “shut the fuck up cunt.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date